

Shyam Kumar Awasthi v. U.P.P.C.L.

High Court of Judicature at Allahabad · Division Bench · 3 August 2016 · Writ - C No. 35843 of 2016 · **Writ disposed; Executive Engineer to consider objection and pass assessment.**

HEADNOTE

Provisional bill on a checking report of theft — consumer's remedy is a reply under s.126 of the Electricity Act, 2003 and clause 8.5 of the Electricity Supply Code, 2005 — objection already served as a notice to be considered by the Executive Engineer, who shall pass an assessment order — writ disposed without examining the theft finding or quantum.

FACTUAL SUMMARY

Following a checking report that recorded theft of electricity, U.P.P.C.L. issued a provisional bill of Rs. 82,451 to Shyam Kumar Awasthi. He filed a civil writ in the Allahabad High Court, having already served a notice of objection (annexure 3). Counsel for both sides were heard. The Division Bench did not try whether theft was made out or whether the billed amount was correct.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

objection-to-provisional-assessment

HOLDING

A consumer objecting to a provisional bill raised on a checking report of theft must file a reply under Section 126 of the Electricity Act, 2003 and clause 8.5 of the Electricity Supply Code, 2005. Where that objection has already been served as a notice, the concerned Executive Engineer shall consider it and pass an appropriate assessment order; the writ court will not itself decide the assessment. ¶ 1

HOLDING-UNIT · UP-2005::8.5

objection-to-provisional-assessment

HOLDING

Clause 8.5 of the Electricity Supply Code, 2005, with Section 126 of the Electricity Act, 2003, is the path for a reply to a provisional theft bill; the Executive Engineer must consider the objection and pass an assessment order. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment

Provisional bill on a checking report of theft — consumer's remedy is a reply under s.126 of the Electricity Act, 2003 and clause 8.5 of the Electricity Supply Code, 2005 — objection already served as a notice to be considered by the Executive Engineer ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS ESTABLISHED AND WHETHER THE PROVISIONAL ASSESSMENT OF RS. 82,451 WAS CORRECT

Left to the Executive Engineer on the pending objection. ¶ 1

